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ODPC Registration for Hospitality Businesses

A sector guide to registration, the 2024 guest-ID directive, and a High Court ruling on image consent for hotels, lodges, short-let hosts and tour operators in Kenya.



HOSPITALITY & TOURISM · ODPC REGISTRATION · GUEST ID DIRECTIVE · STATUTORY APPEAL

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KENYA PRIVACY LAW REVIEW · REGISTRATION GUIDE SERIES

ODPC Registration for Hospitality Businesses

A sector guide for hotels, lodges, short-let and Airbnb-style hosts, and tour operators in Kenya.

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AT A GLANCE

- “Hospitality industry firms” is a mandatory ODPC registration category **regardless of turnover or staff numbers** — a single guesthouse, lodge or short-let host cannot rely on the small-business exemption.
- Accommodation providers, including Airbnb-style short-lets, sit under a genuine regulatory tension: a 2024 security directive requires recording and temporarily withholding guest identification, which must be **reconciled with, not substituted for**, the Act's data minimisation and secure-retention requirements.
- Foreign guest data is the **default** in this sector, not the exception — nearly every hospitality business should expect to address cross-border questions in its registration application.
- A Kenyan High Court ruling involving a hotel confirms that verbal or implied consent is **insufficient** for commercial use of a person's image, and separately confirms that a business must exhaust the Act's statutory appeal route before seeking judicial review of an adverse ODPC determination.
- Tour operators and safari companies handle an additional layer of sensitive data most other hospitality businesses do not — yellow fever vaccination and other health documentation collected or verified as a condition of travel.

01 Introduction

Kenya's hospitality sector runs from single-room Airbnb-style listings and family-run guesthouses to international hotel chains, safari lodges and tour operators serving a predominantly foreign clientele. Nearly every stage of that business generates personal data: identity documents at check-in, payment and billing records, dietary and safety-related disclosures, and, for tour operators, travel and health documentation required for entry into parks or across borders. The Data Protection Act, 2019 (“the Act”) requires each of these businesses to register with the ODPC as a data controller, and separately requires anyone processing that data on another's behalf — a property management company running a short-let on an owner's behalf, for instance — to register as a processor. This Guide sets out that obligation, together with a security-driven identification requirement distinctive to this sector and a High Court ruling every hospitality business and its advisers should know.

02 The Legal and Regulatory Framework

The registration obligation arises from section 18 of the Act, given operational effect by the Data Protection (Registration of Data Controllers and Data Processors) Regulations, 2021 (Legal Notice No. 207 of 2021) (“the Registration Regulations”), which took effect on 14 July 2022. Two further, sector-specific instruments matter here. The Tourism Regulatory Authority Regulations, 2014 (Legal Notice No. 128 of 2014) require every licensed hospitality enterprise to keep a register recording particulars of every guest, employee and trainee. More recently, on 15 January 2024 the Private Security Regulatory Authority — giving effect to section 48 of the Private Security Regulation Act — directed all accommodation providers, expressly including online lodging and Airbnb-style platforms, to record and temporarily withhold guests' identification documents, and to maintain a current log of vehicles entering and leaving the premises, following a series of serious security incidents linked to short-let accommodation.

03 Why Registration Is Mandatory for This Sector

The Registration Regulations exempt data controllers and processors with an annual turnover below KES 5,000,000 and fewer than ten employees from mandatory registration — but only where the entity does not fall within a list of sectors the Regulations treat as

inherently higher-risk regardless of size. “Hospitality industry firms” is one of those sectors.

PRACTICAL INSIGHT

A single-room Airbnb-style host or a two-room family guesthouse must register, exactly as a fifty-room hotel must. The Private Security Regulatory Authority's 2024 directive reinforces this by name, expressly extending its identification requirement to online lodging and Airbnb-style hosts, not only conventional hotels.

04 The Guest-Data Tension: Security Mandate Meets Data Minimisation

The 2024 security directive requiring accommodation providers to record and temporarily withhold guest identification sits alongside, rather than in place of, the Act's principles of data minimisation, purpose limitation and secure retention. “Temporarily withhold” is doing real work in that directive: it authorises a purpose-limited, time-bound measure — holding an identification document for the duration necessary to verify identity and address a specific security purpose — not an indefinite retention practice. A hospitality business should treat the two obligations as complementary rather than substitutable: the security directive and the Tourism Regulatory Authority's guest-register requirement establish that this data must be collected; the Act governs how long it may be kept, who may access it, and how it must eventually be disposed of. A registration application, and the safeguards described within it, should reflect both halves of that analysis rather than citing the security directive as if it were a complete answer.

05 Controller, Processor — or Both?

A hotel, lodge or short-let host is ordinarily a data controller for its own guest and staff records. Many properties are, in addition, connected to online travel agencies — Booking.com, Airbnb, Expedia and similar platforms — which are themselves independent controllers for their own platform data and disclose booking and guest data to the property, which then becomes controller for that data in respect of the stay. A property management company operating a short-let on an owner's behalf is ordinarily a data processor for that owner's guest relationship, while remaining a controller for its own client and marketing data — the same dual-role pattern addressed in the firm's Property &

Real Estate Guide (KPLR/RG/004/2026). A tour operator is ordinarily a controller for its own client data, and may be a processor where it fulfils part of an itinerary on another operator's instructions.

06 Registration Tiers and Fees

Private-sector data controllers and processors are classified into three tiers based on annual turnover and employee numbers.

Tier	Size Criteria	Registration Fee (once-off)
Micro & Small	1–50 employees; turnover up to KES 5,000,000	KES 4,000
Medium	51–99 employees; turnover KES 5,000,001–50,000,000	KES 16,000
Large	More than 99 employees; turnover above KES 50,000,000	KES 40,000
Public / Charitable or Faith-Based Entities	Regardless of turnover or staff numbers	KES 4,000

A certificate of registration is valid for 24 months from the date of issue and must be renewed at least 30 days before expiry; renewal fees are lower than initial registration fees (currently KES 2,000 for Micro & Small, KES 9,000 for Medium, and KES 25,000 for Large).

07 Information the ODPC Will Expect to See

Beyond basic establishment details — a certificate of incorporation or business registration, a KRA PIN, and the relevant Tourism Regulatory Authority licence — a complete application requires a clear and internally consistent description of the business's data processing activities:

- **Categories of data subjects processed** — guests, including foreign nationals, walk-in visitors, corporate or group bookers, staff, and, for tour operators, travellers on a booked itinerary.

- **Categories of personal data processed** — identification and passport data, nationality and visa information, payment data, dietary and safety-related disclosures, vehicle and visitor logs kept under the 2024 security directive, and, for tour operators, yellow fever or other vaccination documentation.
- **The specific purposes** for which data is processed — statutory guest registration, security compliance, billing, marketing or loyalty programmes, and safety or risk management should be distinguished rather than bundled into a single generic purpose.
- **Recipients** to whom data is disclosed — online travel agencies, payment processors, the Tourism Regulatory Authority, security agencies where the 2024 directive applies, immigration authorities, and, for tour operators, park authorities and airline or transport partners.
- **Any transfer of data outside Kenya** — close to a default position for this sector, given the volume of foreign guest bookings and the near-universal use of offshore-hosted booking platforms and property management systems.
- **The safeguards in place** — specifically including how identification documents temporarily withheld under the security directive are stored and for how long, and the safeguards applied to any dietary, safety or health-related disclosure.

08 Where Hospitality Businesses Get It Wrong

The following gaps are the ones most likely to trigger a correction on application, and, on the evidence of the case discussed in section 11, the ones most likely to produce a complaint.

COMMON MISTAKE — TREATING THE SECURITY DIRECTIVE AS BLANKET RETENTION PERMISSION

Reading the 2024 directive's instruction to record and withhold identification as licence to retain guest ID documents indefinitely, rather than for the limited, purpose-specific period the directive actually contemplates, with no documented disposal point.

COMMON MISTAKE — VERBAL OR IMPLIED CONSENT FOR COMMERCIAL USE OF AN IMAGE

Treating a staff member's or guest's willingness to pose for a photograph as sufficient authorisation for its ongoing commercial use on a website or in marketing material. As the case discussed in section 11 confirms, the Act requires consent that is express and capable of proof — not merely inferred from cooperative behaviour during a photography session.

COMMON MISTAKE — UNDISCLOSED OTA AND BOOKING-PLATFORM DATA SHARING

Omitting online travel agencies and booking platforms as recipients, and failing to address the cross-border transfer this involves, since nearly all major OTAs are hosted outside Kenya.

COMMON MISTAKE — NO DISTINCT TREATMENT OF HEALTH-ADJACENT DISCLOSURES

Collecting allergy, dietary or medical information “for guest safety” without recognising it as data warranting particular care, or, for tour operators, treating yellow fever and vaccination documentation as routine paperwork rather than as data requiring the same safeguards as any other health-related record.

COMMON MISTAKE — INCOMPLETE DATA INVENTORY

Listing “guests” as a single undifferentiated category, without separately identifying staff, corporate bookers, and walk-in visitors, each of whom is owed a different privacy notice.

09 Step by Step: Registration and Responding to a Correction Notice

- Prepare the data inventory and supporting documents set out in section 7 above before opening the online application.
- Submit the application through the ODPC's online portal and pay the applicable tier fee.
- Where the Data Commissioner is satisfied, a certificate of registration is issued within 14 days of a complete submission.
- Where the Data Commissioner is not satisfied, a written refusal notice is issued within 21 days, setting out the specific reasons for rejection.
- A rejected applicant may cure the identified deficiencies and make a fresh application — this attracts a new registration fee.

- Once issued, the certificate is valid for 24 months and must be renewed at least 30 days before expiry.
- Where a business disagrees with an ODPC determination on a complaint — as distinct from a registration correction — it should pursue the statutory appeal route under section 64 of the Act in the first instance; section 11 below sets out why this matters.

10 Beyond Registration: Related Compliance Obligations

Registration is a threshold obligation, not a complete compliance programme. Hospitality businesses should, in parallel, address the following:

- **Appointment of a Data Protection Officer**, required where the business processes personal data at scale or conducts systematic monitoring of data subjects — a threshold larger hotels and chains operating loyalty programmes or biometric check-in are likely to meet.
- **A Data Protection Impact Assessment** before deploying large-scale guest profiling, loyalty-programme analytics, or biometric check-in systems.
- **A privacy notice** that specifically addresses identification documents temporarily withheld under the security directive, CCTV in common areas, and any dietary or health-related data collected for guest safety.
- **Written data processing agreements** with online travel agencies, property management system vendors, and any short-let management company acting as processor.
- **A documented retention and disposal policy** for identification documents collected under the Tourism Regulatory Authority register and the 2024 security directive, distinct from ordinary guest correspondence retention.
- **A breach-response procedure** calibrated to the Act's notification timelines — notification to the ODPC without undue delay and within the statutory window.

11 Case in Focus

REPUBLIC V DATA PROTECTION COMMISSIONER; HOTEL WATERBUCK LIMITED (EX-PARTE APPLICANT); SIELE (INTERESTED PARTY) – JUDICIAL REVIEW E011 OF 2024, [2025] KEHC 5801 (KLR), RULING OF 5 MAY 2025

Facts. A junior receptionist at Hotel Waterbuck was photographed during what the hotel described as a photography session, and the image was subsequently used on the hotel's website for commercial purposes. The employee complained to the ODPC that this continued use was without his proper consent. The hotel argued he had given verbal consent and had posed voluntarily, with knowledge of the session's purpose.

ODPC finding. By determination of 18 June 2024 (Complaint No. 0478 of 2024), the Data Commissioner found that the hotel had not fulfilled the conditions for valid consent under sections 2, 30(1), 32 and 37 of the Act, and ordered the hotel to compensate the employee KES 500,000 for continual use of his image for commercial purposes without properly obtained consent.

The hotel's challenge. Rather than appeal the determination under the Act's statutory appeal mechanism, the hotel sought judicial review at the High Court, asking the court to quash the determination as procedurally unfair. The High Court held that, where an effective statutory appeal process exists under section 64 of the Act, a party must exhaust that route before invoking judicial review. Having bypassed the statutory appeal, the hotel's judicial review application was struck out without the underlying merits being considered, leaving the ODPC's determination – and the compensation order – standing.

Relevance to this sector. The substantive lesson echoes a pattern this series has now seen across healthcare, general business and hospitality alike – a person's cooperation with a photograph is not the same as express, provable consent for its commercial use. The procedural lesson is distinct and equally important: a hospitality business that disagrees with an ODPC determination has a real remedy, but only if it uses the statutory appeal route rather than going straight to judicial review.

12 Practical Compliance Checklist

BEFORE YOU APPLY

- ☒ Confirmed the business's correct tier by cross-checking staff numbers and turnover against filed accounts and payroll records.
- ☒ Confirmed controller/processor scope, including any OTA relationship and any short-let management arrangement.

- ☒ Prepared a complete data inventory: guests, staff, corporate bookers and walk-in visitors, each stated separately.
- ☒ Documented specific safeguards for identification documents temporarily withheld under the 2024 security directive, including a defined retention period and disposal point.
- ☒ Identified all recipients, including OTAs, payment processors, and, where applicable, security or immigration authorities.
- ☒ Identified the cross-border element inherent in foreign guest bookings and offshore-hosted platforms.

AFTER YOU APPLY

- ☒ Diarised the 14-day review window and the 21-day refusal-notice window.
- ☒ If a correction or refusal notice is received, addressed every point raised before resubmitting.
- ☒ Diarised the 24-month certificate expiry and the 30-day renewal deadline.

ONGOING

- ☒ Obtained and documented express consent — not inferred from cooperative posing — before using any guest's or staff member's image commercially.
- ☒ Reviewed identification-document retention practices against the security directive's "temporary" standard, not an indefinite one.
- ☒ Put in place a privacy notice addressing ID retention, CCTV, and any health or dietary data collected for guest safety.
- ☒ Executed data processing agreements with OTAs, PMS vendors and any short-let management company.
- ☒ Confirmed with counsel that any challenge to an ODPC determination proceeds via the statutory appeal route, not judicial review, in the first instance.

13 Conclusion

For a Kenyan hospitality business, registration is unconditional and the underlying compliance obligations are unusually layered — a security directive and a tourism licensing requirement both compel collection of the same identification data the Act requires to be minimised, secured and eventually disposed of. Getting the registration application right means describing both halves of that picture, not treating one as a substitute for the

other. The Hotel Waterbuck ruling is worth internalising for reasons beyond its facts: it confirms that cooperative behaviour is not consent, and that the path to challenging an adverse ODPC finding runs through the Act's own appeal mechanism, not around it.

KEY TAKEAWAYS

- “Hospitality industry firms” is a mandatory ODPC registration category **regardless of turnover or staff numbers** — a single guesthouse, lodge or short-let host cannot rely on the small-business exemption.
- Accommodation providers, including Airbnb-style short-lets, sit under a genuine regulatory tension: a 2024 security directive requires recording and temporarily withholding guest identification, which must be **reconciled with, not substituted for**, the Act's data minimisation and secure-retention requirements.
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AUTHOR'S PERSPECTIVE

Hotel Waterbuck is a useful case to sit with because it punishes a shortcut twice over — first for treating a smile for the camera as consent, and again for treating judicial review as a shortcut past the Act's own appeal process. Clients in this sector tend to focus on the first lesson because it is the one that cost money; we make a point of walking them through the second, because it is the one that will matter if they are ever unhappy with a determination and reach for the wrong remedy first.

How We Can Help. We advise hotels, lodges, short-let hosts and tour operators on registration strategy, the guest-ID retention question, and the statutory appeal route where an ODPC determination is in dispute. If any part of this Guide describes your business, we would be glad to talk it through with you.

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